

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND-----X
FELICIA DELLAQUILA,

Plaintiff,

-against-

AMENDED
VERIFIED COMPLAINT

Index No.: 150213/2016

THE CITY OF NEW YORK, DETECTIVE CHARLES KAZAK, SHIELD #3898, SARGENT Yael Magori SHIELD NO. 2640, POLICE OFFICER Valerie Matteo, SHIELD NO. 04188, POLICE OFFICER John Doe #1, POLICE OFFICER John Doe #2, POLICE OFFICER John Doe #3, INDIVIDUALLY AND IN THEIR CAPACITIES AS MEMBERS OF THE NEW YORK POLICE DEPARTMENT,

Defendant.
----- X

Plaintiff, Felicia Dellaquila, by her attorney, Marni F. Schlesinger, a member of the law firm, Apicella & Schlesinger, complaining of the Defendants herein, upon information and belief respectfully alleges:

PRELIMINARY STATEMENT

1. This is a civil action in which the Plaintiff Felicia Dellaquila, seeks relief for false arrest, false imprisonment, malicious prosecution, assault, and violation of her rights secured by 42 USC 1983, the Fourth and Fourteenth Amendments to the United States Constitution.

2. On February 24, 2015, the Plaintiff was unjustly, and falsely arrested, and maliciously and falsely charged with a criminal offense, and otherwise subjected to an extended and unjustified custodial detention and all association therewith including being subjected to

malicious abuse of criminal process, discrimination, and harassment based on the Plaintiff's sexual orientation or perceived sexual orientation, excessive and unreasonable and unnecessary imprisonment, and excessive and unnecessary and unreasonable terms and conditions of her custodial detention including excessive and unreasonable and unnecessary handcuffing. The charge, which was preferred against the Plaintiff, was dismissed on February 25, 2015.

3. This is an action in which the Plaintiff seeks relief for the violation of her rights as guaranteed under the laws and Constitution of the United States and, as well, under the laws and Constitution of the State of New York.

4. The Plaintiff seeks monetary damages and such other relief, as may be in the interest of justice, and as may be required to assure that the Plaintiff secures full and complete relief and justice for the violation of her rights.

5. Plaintiff seeks monetary damages (special compensatory, and punitive) against Defendants as an award of costs and attorneys' fees, and such other and further relief as this Court deems just and proper.

6. The claims arise from a February 24, 2015, incident in which Officers of the New York City Police Department acting under color of state law, intentionally and willfully subjected Felicia Dellaquila to, inter alia, false arrest, Slander, Gender Discrimination, and malicious prosecution.

7. Plaintiff, Felicia Dellaquila, is a United States Citizen and at all times herein relevant, is a domiciliary of the County of Richmond, City and State of New York.

8. The City of New York is a municipal corporation organized under the Laws of the State of New York.

9. Detective Charles Kazak Shield No.: 3898, Sergeant Yael Magori Shield No. 2640, Police Officer Valerie Matteo Shield No. 04188, and John Doe 1, John Doe 2, and John Doe 3, in their individual and official capacities are sued in their individual and professional capacities.

10. At all times mentioned, Defendants were acting under color of the statutes, ordinances, regulations, policies and customs and usages of the City of New York.

11. That at all times hereinafter mentioned, the Plaintiff, was a resident of the County of Richmond County, City and State of New York.

12. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK (hereinafter referred to as "CITY") was and still is a domestic municipal corporation duly authorized and existing under and by virtue of the laws of the State of New York.

13. That at all times herein mentioned, the defendant, CITY, by its agents, servants and/or employees, operated, maintained and controlled the Police Department of the City of New York (hereinafter referred to as NYCPD), including all police officers and detectives thereof.

14. That at all times hereinafter mentioned, the NYCPD is an agency of the defendant CITY.

15. That at all times herein mentioned, it was and is the duty of each CITY police officer not to use force except to the extent that it is legally justified, reasonable and necessary.

16. That at all times herein mentioned, it was and is the duty of each CITY police officer to report misconduct by any officer which he or she has witnessed.

17. That at all times herein mentioned, it was and is the duty of each CITY police officer not to falsely report an incident.

18. The Plaintiff was falsely arrested; she was subjected malicious abuse of criminal process; she was subjected to discriminatory and harassing conduct and treatment because of her status as a gay female and as a member of the gay, lesbian, bi-sexual and transgender communities; she was subjected to unreasonable and excessive terms and conditions of her arrest and custodial imprisonment including excessive and unreasonable, and unnecessary force.

AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT AND BATTERY

19. Plaintiff repeat, reiterates and realleges each and every allegation of this complaint in paragraphs "1" through "18" inclusive, with the same force and effect as if set forth at length herein.

20. That at on February 24, 2015 at about 6:00 P.M. at the 123rd Precinct located at 116 Main Street, Staten Island, County of Richmond, City and State of New York, the Plaintiff, Felicia Dellaquila, was suddenly and without warning detained, questioned, and held within the custody of Police Officers from the New York City Police Department their agents servants and employees who unlawfully and without justification did arrest the Plaintiff, Felicia Dellaquila, against her will and without probable cause and was taken into custody by the New York City Police Department against her will and was searched and handcuffed behind her back and handcuffed and placed in a cell in the Precinct where the Plaintiff was detained and held against her will. Thereafter the Plaintiff was fingerprinted and then handcuffed again placed in a cell the Plaintiff was detained and held against her will. The Plaintiff did not receive any food and was not permitted to make any phone calls. Thereafter the Plaintiff was handcuffed behind her back and placed in a van with others and transported

to Central Booking where the Plaintiff was searched and placed in a cell with others where the Plaintiff was detained and held against her will. Thereafter the Plaintiff, Felicia Dellaquila, was given a retinal eye scan, photographed and then placed in a cell with others where the Plaintiff was detained and held against her will. The Plaintiff was detained and held against her will by Detective Charles Kazak Shield No.: 3898, Sergeant Yael Magori Shield No. 2640, Police Officer Valerie Matteo Shield No. 04188, and other members of the NYPD Police officers of the New York City Police Department for a period of one (1) day for which the Plaintiff should have been at liberty.

21. Upon information and belief, the Plaintiff was arrested and charged with various offenses.

22. Upon information and belief, the Plaintiff was not guilty of any of the offenses for which she was charged and the police officers did not have reasonable or probable cause to stop or to detain the Plaintiff nor did they have probable cause to arrest the Plaintiff.

23. That on February 24, 2015 at about 6:00 P.M. at the 123rd Precinct located at 116 Main Street, Staten Island, County of Richmond, City and State of New York, the Plaintiff Felicia Dellaquila was suddenly and without warning detained, questioned, and held within the custody of Police Officers from the New York City Police Department their agents servants and employees who unlawfully and without justification did arrest the Plaintiff, Felicia Dellaquila, against her will and without probable cause and was taken into custody by the New York City Police Department against her will and was searched and handcuffed behind her back and handcuffed and placed in a cell in the Precinct where the Plaintiff Felicia Dellaquila was detained and held against her will. Thereafter the Plaintiff was fingerprinted

and then handcuffed again placed in a cell the Plaintiff was detained and held against her will. The Plaintiff did not receive any food. Thereafter the Plaintiff was handcuffed behind her back and placed in a van with others and transported to Central Booking where the Plaintiff was searched and placed in a cell with others where the Plaintiff was detained and held against her will. Thereafter the Plaintiff, Felicia Dellaquila, was given a retinal eye scan, photographed and then placed in a cell with others where the Plaintiff was detained and held against her will. The Plaintiff was detained and held against her will by Police officers of the New York City Police Department for a period of one (1) day for which the Plaintiff should have been at liberty.

24. The aforesaid assault by said Police officers from the 123rd Precinct and other members of the NYCPD was unprovoked and/or unwarranted and/or unjustified and/or unnecessary and/or excessive and/or legally unauthorized.

25. That said Police officers from the 123rd Precinct and other members of the NYCPD conducted themselves in a manner which exhibited a gross indifference to and a wanton disregard for the life, health and safety of the Plaintiff.

26. That by reason of the aforesaid assault, the Plaintiff, FELICIA DELLAQUILA, sustained severe and serious injuries, a severe shock to her nervous system and certain internal injuries, and was caused to suffer severe mental anguish as a result thereof, and upon information and belief some of these injuries are of a permanent and lasting nature; was incapacitated from her regular activities; was hindered and prevented from performing and transacting her affairs and business; suffered neurological involvement and psychological distress, including but not limited to mental anguish and pre-impact terror; suffered loss of

enjoyment of life; was deprived of her liberty; was deprived of her rights, privileges and/or immunities as secured by the Constitution and/or other laws of the United States; suffered embarrassment, humiliation, shame, dishonor and loss of standing within the community and had medical expenses.

27. That by reason of the foregoing, the amount of damages sought exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION
FOR FALSE ARREST AND UNLAWFUL IMPRISONMENT

28. Plaintiff repeats, reiterates and realleges each and every allegation of the complaint in paragraphs "1" through "27" inclusive, with the same force and effect as if set forth at length herein.

29. February 24, 2015 at about 6:00 P.M. at the 123rd Precinct located at 116 Main Street, Staten Island, County of Richmond, City and State of New York, officers from the 123rd Precinct and other members of the NYCPD arrested the Plaintiff, even though the Plaintiff had been engaged in no unlawful conduct.

30. The arrest of Plaintiff was intentional and unprivileged.

31. The arrest of Plaintiff was caused by Detective Charles Kazak Shield No.: 3898, Sergeant Yael Magori Shield No. 2640, Police Officer Valerie Matteo Shield No. 04188 and other police officers from the 123rd Precinct and other members of the NYCPD without the consent of Plaintiff, without any warrant or other legal process directing or authorizing her seizure, arrest, or detention, and without any reasonable cause to believe that Plaintiff had committed or was guilty of any offense.

32. Upon information and belief, following the arrest of the Plaintiff, Police officers from

the 123rd Precinct and other members of the NYCPD caused Plaintiff to be booked on criminal charges. An accusatory instrument was signed by Police officers from the 123rd Precinct and/or NYCPD police officers and then filed with the Criminal Court of the City of New York, County of New York.

33. The charges which the Police officers from the 123rd Precinct and/or other members of the NYCPD caused to be brought against Plaintiff in the accusatory instrument were false.

34. The charges which other members of the NYCPD caused to be brought against Plaintiff in the accusatory instrument were false.

35. The Plaintiff was aware of her arrest and imprisonment.

36. Because of the aforesaid false accusations made by Police officers from the 123rd Precinct and/or other members of the NYCPD, the Plaintiff was forcibly and violently seized, arrested, held and taken to various secured facilities in County of New York, City and State of New York, where the Plaintiff was deprived of her freedom, and detained and imprisoned against her will.

37. Upon information and belief, Police officers from the 123rd Precinct Detective Charles Kazak Shield No.: 3898, Sergeant Yael Magori Shield No. 2640, Police Officer Valerie Matteo Shield No. 04188 and/or other members of the NYCPD falsely, publicly, wickedly and maliciously accused the Plaintiff of having committed the criminal offenses for the ulterior purpose of covering up the misconduct of themselves and/or other members of the NYCPD.

38. Plaintiff was innocent of the said charges and upon information and belief was forced by Police officers from the 123rd Precinct Detective Charles Kazak Shield No.: 3898,

Sergeant Yael Magori Shield No. 2640, Police Officer Valerie Matteo Shield No. 04188 and/or other members of the NYCPD to submit to the aforesaid false arrest and/or imprisonment, entirely against her will.

39. That by reason of the aforesaid false arrest and unlawful imprisonment of FELICIA DELLAQUILA, the Plaintiff, sustained severe and serious injuries, a severe shock to her nervous system and certain internal injuries, and was caused to suffer severe pain and mental anguish as a result thereof, and upon information and belief some of these injuries are of a permanent and lasting nature; was incapacitated from her regular activities; was hindered and prevented from performing and transacting her affairs and business which resulted in severe monetary and economic loss; suffered neurological involvement and psychological distress, including but not limited to mental anguish and pre-impact terror; suffered loss of enjoyment of life; was deprived of her liberty; was deprived of her rights, privileges and/or immunities as secured by the Constitution and/or other laws of the United States; suffered embarrassment, humiliation, shame, dishonor and loss of standing within the community and had medical expenses.

40. That by reason of the foregoing, the amount of damages sought exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION FOR ABUSE OF PROCESS AND MALICIOUS PROSECUTION

41. Plaintiff repeats, reiterates, and realleges each and every allegation of the Complaint in paragraphs "1" through "40" inclusive, with the same force and effect as if set forth at length herein.

42. Upon information and belief, Police officers from the 123rd Precinct and/or other

members of the NEW YORK CITY POLICE DEPARTMENT caused the criminal action referred to hereinbefore (accusatory instrument) to be filed against Plaintiff in the Criminal Court of the City of New York, County of New York.

43. Upon information and belief, said Police officers from the 123rd Precinct falsely, publicly, wickedly and maliciously caused the aforementioned criminal action to be brought for the ulterior purpose of hiding the wrongful conduct of Police officers from the 123rd Precinct and/or other members of THE NEW YORK CITY POLICE DEPARTMENT.

44. Upon information and belief, Detective Charles Kazak Shield No.: 3898, Sergeant Yael Magori Shield No. 2640, Police Officer Valerie Matteo Shield No. 04188 and other members of THE NEW YORK CITY POLICE DEPARTMENT, falsely, publicly, wickedly, and maliciously caused the aforementioned criminal action to be brought for the ulterior purpose of hiding the wrongful conduct of Detective Charles Kazak Shield No.: 3898, Sergeant Yael Magori Shield No. 2640, Police Officer Valerie Matteo Shield No. 04188, and Police officers from the 123rd Precinct.

45. Upon information and belief, Police officers Detective Charles Kazak Shield No.: 3898, Sergeant Yael Magori Shield No. 2640, Police Officer Valerie Matteo Shield No. 04188 and other officers from the 123rd Precinct and/or other members of THE NEW YORK CITY POLICE DEPARTMENT wrongfully and unjustifiably caused the accusatory instrument referred to hereinbefore to be issued against Plaintiff.

46. That by reason of the aforesaid abuse of process, false arrest, and malicious prosecution, the Plaintiff, FELICIA DELLAQUILA, sustained severe and serious injuries, a severe shock to her nervous system and certain internal injuries, and was caused to suffer

severe physical pain and mental anguish as a result thereof, and upon information and belief some of these injuries are of a permanent and lasting nature; was incapacitated from her regular activities; was hindered and prevented from performing and transacting her affairs which resulted in severe monetary and economic loss, and business; suffered neurological involvement and psychological distress, including but not limited to mental anguish and pre-impact terror; suffered loss of enjoyment of life; was deprived of her liberty; was deprived of her rights, privileges and/or immunities as secured by the Constitution and/or other laws of the United States; suffered embarrassment, humiliation, shame, dishonor and loss of standing within the community and had medical expenses.

47. That by reason of the foregoing, the amount of damages sought exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION
WRONGFUL DEPRIVATION OF RIGHTS UNDER COLOR OF STATE LAW

48. Plaintiff repeat, reiterates, and realleges each and every allegation of the Complaint in paragraphs "1" through "47 inclusive, with the same force and effect as if set forth at length herein.

49. Upon information and belief, the acts of Police officers from the 123rd Precinct and/or other members of THE NEW YORK CITY POLICE DEPARTMENT were committed under color of state law.

50. Upon information and belief, the aforementioned acts of Police officers from the 123rd Precinct and/or other members of THE NEW YORK CITY POLICE DEPARTMENT were committed under her authority as police officers vested under and by virtue of the laws of the State of New York.

51. That by reason of the aforesaid wrongful deprivation of rights, the Plaintiff, FELICIA DELLAQUILA, sustained severe and serious injuries, a severe shock to her nervous system and certain internal injuries, and was caused to suffer severe physical pain and mental anguish as a result thereof, and upon information and belief some of these injuries are of a permanent and lasting nature; was incapacitated from her regular activities; was hindered and prevented from performing and transacting her affairs and business; suffered neurological involvement and psychological distress, including but not limited to mental anguish and pre-impact terror; suffered loss of enjoyment of life; was deprived of her liberty; was deprived of her rights, privileges and/or immunities as secured by the Constitution and/or other laws of the United States; suffered embarrassment, humiliation, shame, dishonor and loss of standing within the community and had medical expenses.

52. That by reason of the foregoing, the amount of damages sought exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION - NEGLIGENCE

53. Plaintiff repeat, reiterates, and realleges each and every allegation of the Complaint in paragraphs "1" through "52" inclusive, with the same force and effect as if set forth at length herein.

54. Upon information and belief, Police officers from the 123rd Precinct and other members of THE NEW YORK CITY POLICE DEPARTMENT in her capacities as police officers of the CITY OF NEW YORK, owe a special duty to exercise care in favor of Plaintiff and other members of the public: a) not to knowingly participate in the false arrest of an individual; b) not to falsely swear to an accusatory instrument; c) not to wrongfully detain an

individual; d) not to treat an individual in custody in an inhumane manner; e) not to act in a demeaning manner to a person who is in custody; f) to comply with the POLICE DEPARTMENT OF THE CITY OF NEW YORK Patrol Guide and training manuals for NYCPD police officers; and g) to cause the arrest of an accused person only when there is probable cause to believe that the accused actually committed the crime(s) charged.

55. That at all times hereinafter mentioned, the involved Detective Charles Kazak Shield No.: 3898, Sergeant Yael Magori Shield No. 2640, Police Officer Valerie Matteo Shield No. 04188 and other Police Officers from the 123rd Precinct and other members of THE NEW YORK CITY POLICE DEPARTMENT were negligent, careless and reckless in that they a) knowingly participated in the false arrest of the Plaintiff; b) falsely sworn to an accusatory instrument regarding the Plaintiff; c) wrongfully detained the Plaintiff; d) mistreated the Plaintiff, while he was in custody; e) failed to comply with the POLICE DEPARTMENT OF THE CITY OF NEW YORK police patrol guide and training manuals for CITY OF NEW YORK police officers with respect to the handling of the Plaintiff; and f) caused the arrest of the Plaintiff herein, even though there was no probable cause to believe that the Plaintiff had actually committed the crimes with which they were charged.

56. That by reason of the aforesaid negligence the Plaintiff, FELICIA DELLAQUILA, sustained severe and serious injuries, a severe shock to her nervous system and certain internal injuries, and was caused to suffer severe pain and mental anguish as a result thereof, and upon information and belief some of these injuries are of a permanent and lasting nature; was incapacitated from her regular activities; was hindered and prevented from performing and transacting her affairs and business; suffered neurological involvement and psychological

distress, including but not limited to mental anguish and pre-impact terror; suffered loss of enjoyment of life; was deprived of her liberty; was deprived of her rights, privileges and/or immunities as secured by the Constitution and/or other laws of the United States; suffered embarrassment, humiliation, shame, dishonor and loss of standing within the community and had medical expenses.

57. That by reason of the foregoing, the amount of damages sought exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION
NEGLIGENCE IN THE HIRING, TRAINING
SUPERVISING, CONTROLLING, DISCIPLINING,
TESTING AND SCREENING BY THE CITY OF NEW YORK OF THEIR POLICE
OFFICERS

58. Plaintiff, repeats, reiterates, and realleges each and every allegation of the Complaint in paragraphs "1" through "57" inclusive, with the same force and effect as if set forth at length herein.

59. Upon information and belief, THE CITY OF NEW YORK and THE POLICE DEPARTMENT OF THE CITY OF NEW YORK owe a duty to exercise care in favor of Plaintiff and other members of the public who are accused of criminal conduct in hiring, training, supervising, controlling, disciplining, testing and screening of those who are trained to become police officers, including but not limited to Police officers from the 123rd Precinct and other members of THE NEW YORK CITY POLICE DEPARTMENT.

60. Upon information and belief, Detective Charles Kazak Shield No.: 3898, Sergeant Yael Magori Shield No. 2640, Police Officer Valerie Matteo Shield No. 04188, THE CITY OF NEW YORK AND THE POLICE DEPARTMENT OF THE CITY OF NEW YORK were

negligent, careless, and reckless in the hiring, training, supervising, controlling, disciplining, testing, and screening of the involved Police officers from the 123rd Precinct and members of THE NEW YORK CITY POLICE DEPARTMENT in that THE CITY OF NEW YORK and THE POLICE DEPARTMENT OF THE CITY OF NEW YORK;

a. Failed to properly instruct and train said Police officers from the 123rd Precinct and other members of THE NEW YORK CITY POLICE DEPARTMENT with respect to the Lesbian, Gay, Transgender Community and use of statements which are not true; “covering up”, identifying the wrongdoing of police officers by police officers, lying, making false official statements, causing false official statements to be filed, committing perjury, and suborning perjury and;

b. Failed to exercise due care and caution by hiring, retaining, and not disciplining said Police officers from the 123rd Precinct and other members of THE NEW YORK CITY POLICE DEPARTMENT despite:

(1) the lack of judgment, mental capacity, ability, and temperament that these said Police officers from the 123rd Precinct and other members of THE NEW YORK CITY POLICE DEPARTMENT have displayed;

(2) the attempt of said Police officers from the 123rd Precinct and other members of THE NEW YORK CITY POLICE DEPARTMENT to cover up and lie about the circumstances surrounding the arrest of Plaintiff, when Police officers from the 123rd Precinct and other members of THE NEW YORK CITY POLICE DEPARTMENT caused the accusatory instruments and other official documents to be filed;

(3) the failure of said Police officers from the 123rd Precinct and other

members of THE NEW YORK CITY POLICE DEPARTMENT to comply with the POLICE DEPARTMENT OF THE CITY OF NEW YORK Patrol Guide and police training manuals for CITY OF NEW YORK police officers; and

(4) the propensity of said Police officers from the 123rd Precinct and other members of THE NEW YORK CITY POLICE DEPARTMENT for untruthful and/or fraudulent behavior.

61. That by reason of the aforesaid negligence, the Plaintiff, FELICIA DELLAQUILA, sustained severe and serious injuries, a severe shock to her nervous system and certain internal injuries, and was caused to suffer severe pain and mental anguish as a result thereof, and upon information and belief some of these injuries are of a permanent and lasting nature; was incapacitated from her regular activities; was hindered and prevented from performing and transacting her affairs and business; suffered neurological involvement and psychological distress, including but not limited to mental anguish and pre-impact terror; suffered loss of enjoyment of life; was deprived of her liberty; was deprived of her rights, privileges and/or immunities as secured by the Constitution and/or other laws of the United States; suffered embarrassment, humiliation, shame, dishonor and loss of standing within the community and had medical expenses.

SEVENTH CAUSE OF ACTION
SLANDER AND HARASSMENT BY DETECTIVE CHARLES KASAK SHIELD NO.:
3898 AND OTHER MEMBERS OF THE NYCPD

62. That Detective Charles Kazak Shield No.: 3898 did call Plaintiff's place of business and informed Plaintiff's superiors at Staten Island University Hospital, a division of North Shore Long Island Jewish Hospital, that she had been arrested for an assault and that she was

running naked in the streets, thereby slandering her good name and reputation, causing employer, except to potentially harass her, and cause her humiliation, and have her terminated from her job.

EIGHTH CAUSE OF ACTION
DISCRIMINATION AND VIOLATION OF CIVIL RIGHTS BASED ON PLAINTIFF'S
SEXUAL ORIENTATION BY DETECTIVE CHARLES KASAK SHIELD NO.: 3898 AND
OTHER MEMBERS OF THE NYCPD, SERGEANT Yael MAGORI
SHIELD NO. 2640, POLICE OFFICER VALERIE MATTEO,
SHIELD NO. 04188 AND OTHER MEMBERS OF THE NEW YORK CITY POLICE
DEPARTMENT

63. Plaintiff repeats, reiterates and realleges each and every allegation of the complaint in paragraphs "1" through "62" inclusive, with the same force and effect as if set forth at length herein.

64. That Plaintiff was discriminated against because of her sexual orientation and her civil rights were violated when Detective Charles Kazak Shield No.: 3898, Sergeant Yael Magori Shield No. 2640, Police Officer Valerie Matteo Shield No. 04188, and other members of the NYPD refused to permit Plaintiff to file a complaint in her domestic matter.

65. That by reason of the foregoing, the amount of damages sought exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

66. Upon information and belief, the limitations of liability set forth in Article 1601 of the CPLR do not apply to the cause of action set forth herein, or that one or more of the exemptions set forth in Section 1602 do apply to the facts of ther case.

67. The Plaintiff herein has complied with all of the conditions precedent to bringing this action against the defendant CITY.

a. A Notice of Claim was served upon the defendant, CITY, within ninety

days after the date of occurrence pursuant to law.

b. At least thirty (30) days have elapsed prior to the commencement of this action since the claim was presented to said defendant for adjustment as aforesaid, and the defendant has refused to adjust or make payment thereof for thirty (30) days after said presentation.

c. This action was commenced within one year and ninety days after the cause of action thereof occurred.

WHEREFORE, by reason of the foregoing, the amounts of damages sought in actions one through six exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: New York, New York
June 23, 2016

Yours, etc.

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